

Vernon's Texas Statutes and Codes Annotated

Property Code (Refs & Annos)

Title 8. Landlord and Tenant (Refs & Annos)

Chapter 92. Residential Tenancies (Refs & Annos)

Subchapter B. Repair or Closing of Leasehold (Refs & Annos)

V.T.C.A., Property Code § 92.053

§ 92.053. Burden of Proof

Currentness

(a) Except as provided by this section, the tenant has the burden of proof in a judicial action to enforce a right resulting from the landlord's failure to repair or remedy a condition under [Section 92.052](#).

(b) If the landlord does not provide a written explanation for delay in performing a duty to repair or remedy on or before the fifth day after receiving from the tenant a written demand for an explanation, the landlord has the burden of proving that he made a diligent effort to repair and that a reasonable time for repair did not elapse.

Credits

Acts 1983, 68th Leg., p. 3633, ch. 576, § 1, eff. Jan. 1, 1984.

O'CONNOR'S NOTES

Source: TRCS [art. 5236f, §3](#).

O'CONNOR'S CROSS REFERENCES

See also [O'Connor's Texas COA](#), “No repair or remedy,” ch. 16-F, §2.6.

O'CONNOR'S ANNOTATIONS

[Philadelphia Indem. Ins. v. White](#), 490 S.W.3d 468, 484 (Tex.2016). See annotation under [Property Code §92.052](#).

V. T. C. A., Property Code § 92.053, TX PROPERTY § 92.053

Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.

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